



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

November 28, 2023, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Commissioners Jason Allen, Jeremy Bergener, Matthew Everett, Robert Fox, and Brent Strong. Alternate Commissioner Jimmy Eaton was absent.

CITY STAFF PRESENT: Brandon Larsen; Planning Director; Marcus Draper, City Attorney; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Senior Planner; David Stroud, Senior Planner; Caden Lyon, Planner; and Elizabeth Fewkes, Recording Secretary.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

Commissioner Everett called the meeting to order at 5:34 p.m.

1. Discussion Items

1.A. DISCUSSION ITEM – Rose Ranch (Formerly Mae Land)

Senior Planner David Stroud presented the item. The applicant contemplates a development containing a variety of single-family lots on Parcel 59:043:0016 consisting of 79.9 acres. The applicants propose a total of 225 lots – 22 R1 lots, 21 R2 lots, 123 R3 lots, and 59 RC lots. The major issue impacting the project is the current Fairfield Road and the future City plan to convert the road into a trail. Initial plans have Fairfield Road converted to open space. However, the plan for the foreseeable future is to keep the road, which prevents the area from being used as open space.

Applicant representative Austin Smith explained that they are considering donating 12 acres of open space, rather than the five acres of required, in exchange for increased density in the project.

Applicant representative Greg Magleby with LEI Engineers and Surveyors explained the differences between the concept plan presented during the meeting and the one in the packet materials. The updated plan has shorter block lengths with a pedestrian corridor. The angle of Fairfield Road creates triangle shapes that are more difficult to develop. Fairfield Road is currently being used as a roadway even though it might be converted to a regional trail. They discussed developing a park to the southeast of Fairfield Road but the City indicated that they would rather add acreage to existing parks. Dedicating the area to the southeast to the City would allow the City to negotiate a land trade with the School and Institutional Trust Lands Administration (SITLA) or develop the land as open space independently or in conjunction with the future trail. Some of the RC lots exceed the lot size requirement for the RC Zone. The acreages of the larger RC lots would qualify for the R1 or R2 zoning but the lots have narrower frontages than permitted in those zones. Costs for the developer and the maintenance for the City increase with greater lot frontages because the cost of the road installation and maintenance is divided between fewer homes.

The Planning Commission provided the following feedback to the applicants:

- SITLA has not been open to similar land trade proposals;
- Desire to see a more even distribution between the lot sizes with 50% of the lots being in the R1 and R2 zoning designations;
- Support of the land to the southeast being open space rather than homes especially due to the uncertainty of the future of Fairfield Road; and
- Concerns about the request to consider narrow lot frontages.

City Attorney Marcus Draper clarified that as Fairfield Road has been used continuously as a roadway for over ten years, it is dedicated and abandoned to the public under the road dedication statute regardless of the ownership of the underlying land.

1.B. DISCUSSION ITEM – Residential Definitions and Chapter Redo – Including Land Use Table

Senior Planner Robert Hobbs presented the item. Day-to-day zoning administration has revealed the need to add several definitions related to residential use to Municipal Code. At the same time, it was thought beneficial to reformat the land use table to make it easier for the public and City staff to use by arranging uses by type and alphabetizing them.

Commissioner Everett stated he would like to discuss which uses should be designated as special uses when the item returns for further review.

Mr. Hobbs requested that the Planning Commissioners email him with their use concerns to be included in the future discussion of the item.

Commissioner Everett adjourned the work session at 6:16 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the policy session to order at 6:31 p.m.

2. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. November 14, 2023 Planning Commission Minutes

MOTION: *Commissioner Bergener moved to approve the November 14, 2023 minutes. Commissioner Strong seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☒ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

5. Status Report

None.

6. Action and Advisory Items

6.A. ACTION – Firefly NPA 8 A3 – Site Plan

Mr. Hobbs presented the item. In 2023, the Pole Canyon 2010 Master Development Plan (MDP) and Master Development Agreement (MDA) were amended and re-stated to recompose the project into the Firefly planned community. The changeover included a collection of changes to layout and building design concepts. The submittal of the Master Site Plan comes on the heels of the City's approval of the Firefly project and, recently, the NPA 8 A3 preliminary plat that pertains to the same ground as the site plan. Firefly 8.1 1A is the first of various anticipated site plans to be submitted to the City for review and approval. Minimum lot area, building sizes, and architectural style and theme were in compliance with Municipal Code. Elevation examples of the townhomes, with groupings of four, five, or six units, represent design elements and/or materials that may be utilized and do not necessarily depict the specific products that will be used in Firefly. The front façade, architectural detailing, and garage doors should be evaluated to determine if they are compliant.

Applicant representative David Vitek confirmed that all the units will include unfinished basements.

Commissioner Fox said that he approves of the product and the square footage is in line with market demands.

Commissioner Everett opened the public hearing at 6:44 p.m. As there were no comments, he closed the hearing.

Commissioner Everett said he discussed his Municipal Code garage door requirement concerns with the applicant and is satisfied with the product.

MOTION: *Commissioner Fox moved to recommend approval to the City Council of the site plan for Firefly NPA 8 A3. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☒ <i>Jason Allen</i>
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The motion passed with a unanimous vote.

6.B. ACTION – Wildlife Corridor Overlay Zone – Ordinance

Wildlife Biologist/Environmental Planner Todd Black presented the item. Municipal Code amendment changes to Title 17.49 were presented as a discussion item to the Planning Commission last year in October. This section has gone through multiple staff revisions and is now ready to present to the Planning Commission and City Council. While not changing the intent of the Wildlife Overlay Zone standards, several additions have been made to add clarity and definitions. Suggested changes clarify how future wildlife overlay zones can be determined, and how they will be stored within the City’s files. Language has also been added to allow for fines and penalties for violations of this code. The addition of 17.49.090 deals with noncompliance. Further edits and alterations will be made and then the section will be presented to the City Council on January 16, 2024.

Commissioner Allen arrived at 6:50 p.m.

Discussion ensued regarding the following:

- Whether to measure the buffer distance from the top or the center of the wash;
- Measuring the 75-foot natural buffer from the center of the wash would require staking the wash but would impact less property;
- Literature and studies that support a 75-foot buffer;
- Concerns with impact to property owners should the wash change due to erosion;
- Current owners will have legal nonconforming status;
- Adding a section to Municipal Code dedicated to natural features such as ridgelines, slopes, and washes;
- Approvals concerning the Wildlife Corridor Overlay Zone have been updated in the documents to make the City Council the approval authority; and
- Concern with allowing density transfers as permitted in 17.49.060(A)(3) prior to the City codifying standards governing density transfers and whether to specify that density transfers are only permitted within the development or to allow transfers between developments.

The Planning Commission requested the following changes to Title 49:

- 17.49.060(H) Wildlife Crossing Structures: remove the sentence, “Wildlife crossing structures ensure habitat connectivity and minimize wildlife-vehicle collisions;”

- 17.49.060(H) Wildlife Crossing Structures: amend the final sentence to, “The City may seasonally restrict the wildlife crossings due to migrating fauna and to avoid human-wildlife conflicts;” and
- 17.49.080(A)(1) Dedication for Public Use: add a list of agencies that qualify as well-established third-party land conservation organizations.

Commissioner Everett opened the public hearing at 7:24 p.m.

Bettina Cameron, speaking on behalf of the Eagle Mountain Nature and Wildlife Alliance, requested that the Planning Commission move the item forward to allow staff and the City Council to make additional changes as merited.

Commissioner Everett closed the public hearing at 7:24 p.m.

Commissioner Everett suggested tabling the item to allow staff to make the changes requested before making a recommendation to the City Council, especially where the item will not be going to the City Council until January 16, 2024, and the Planning Commission will meet again twice before then.

Commissioner Fox advocated for establishing mechanisms to build the structures and handle density credits before the standards go into effect.

MOTION: *Commissioner Everett moved to table an amendment to Eagle Mountain Municipal Code 17.49 to the next meeting to give staff time to work on the language and to implement the requested changes. Commissioner Fox seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a unanimous vote.

SUBSTITUTE MOTION: *Commissioner Everett moved to table an amendment to Eagle Mountain Municipal Code 17.49 to a future meeting to give staff time to work on the language and to implement the requested changes. Commissioner Fox seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ Robert Fox	☐ Robert Fox	☐ Robert Fox	☐ Robert Fox
☒ Brent Strong	☐ Brent Strong	☐ Brent Strong	☐ Brent Strong

The motion passed with a unanimous vote.

6.C. ACTION/PUBLIC HEARING – Official Zoning Map Adoption – Ordinance

This item was removed from the agenda.

6.D. ACTION – Various Sections in Title 17 Relating to Height of Multi-Family Structures, and Height and Standards of Religious or Cultural Meeting Halls – Ordinance

Mr. Stroud presented the item. Current Municipal Code has a maximum height of 35 feet in the MF2 zone regarding multifamily buildings. The Code is proposed to be amended to a maximum height of 45 feet and a maximum of three stories. A three-story height limit is implied but not specified in the current code and required sloping roofs are not possible at 35 feet. An increase in height will allow for greater architectural options such as steeper roofs, interior ceiling height variability, and rooftop amenities. The height of religious and cultural meeting halls is regulated by the standard of the zone in which they are located. This type of use is typically located in a residential zone, which has a maximum permissible height of 35 feet with an additional 10 feet above the finished structure height allowance for ancillary structures. The proposed change will permit the height of ancillary structures not to exceed 70 feet above grade. A survey of many of the churches in the City found ancillary structure heights of 60 to 70 feet above grade.

The multifamily building height is proposed to only apply to the MF2 Zone. The main difference between this zone and the MF1 Zone is that the MF2 Zone permits 12 units or less per building and the MF1 2 to 6 units per building. Townhomes will typically be constructed in the MF1 Zone while stacked units (condo or apartment) will be constructed in the MF2 Zone. While not increasing the total number of stories, the change does increase the potential overall height of a multifamily building in MF2. While an overall height would be permitted at 45 feet, this does not necessarily mean all future buildings in the MF2 Zone will be constructed at the maximum height. It does provide for the option of greater architectural design, which is the reason for the proposed change.

Commissioner Everett opened the public hearing at 7:39 p.m. As there were no comments, he closed the hearing.

Commissioner Everett said that he approves of the idea of standardizing chapel steeple heights and has no concern about allowing 70-foot-tall steeples. He is amenable to allowing the 45-foot height increase as long as the three-story limitation remains in place. He supports allowing rooftop amenities.

MOTION: *Commissioner Strong moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code Title 17. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a unanimous vote.

6.E. ACTION – Drive-Thru – Ordinance

Mr. Hobbs presented the item. The proposed amendment introduces language to require some form of an escape or bypass lane to be a part of the design and installation of drive-thru lanes. Varying businesses, usually fast food related, already make escape or bypass lanes part of their site design and many banks and credit unions incorporate them by default given their building designs to improve product delivery efficiency and relieve potential, perceived liability. Escape or bypass lanes contemplated by the draft language are not intended to be egregious in the amount of land they consume, considering any space given over to them to be worthwhile given their possible benefit. A vehicle trapped in a standard drive-thru with no confirmable, easy way to exit in the case of emergency or other reason is an undesirable predicament they are intended to remedy.

Discussion considered the need for sufficient space to allow for a drive-thru escape or bypass lane.

Commissioner Everett opened the public hearing at 7:53 p.m. As there were no comments, he closed the hearing.

Commissioner Everett stated that he is unsure about the concept. Although he understands the benefits of an escape lane, he feels that such restrictions will impede development in the City. He evaluated restaurants in the area with and without an escape lane option.

Mr. Hobbs stated that in his experience with other cities, similar requirements have not had negative impacts on businesses deciding to locate in the City.

Commissioner Fox said having been a business owner, he thinks that the requirement will be beneficial to the City and businesses, for cases where cars stall or catch fire or medical emergencies. He thinks that if the developer is aware of the need for an additional ten feet during the planning phase, it will not make much of a difference or deter businesses.

Discussion ensued regarding the potential impact of the escape lane on business attraction, ways to adjust site plans to accommodate the escape lane, and stacking lane length requirements and needs.

Commissioner Strong noted that most newer sites have elected to put in escape lanes even without the requirement. He is concerned that the City would be creating standards for something that is not a problem.

Commissioner Bergener stated that an escape lane requirement could be limiting in some instances such as drive-through lanes wrapping around buildings. Nevertheless, he recognizes the benefits of having escape lanes.

MOTION: *Commissioner Fox moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code 17.75.069 and 17.55.130. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a vote of 3:2.

6.F. ACTION – Fencing – Ordinance

Mr. Hobbs presented the item. Three matters triggered the attached code changes. First, a desire to reformat the code’s fencing language to better organize the same into one thematically arranged location. Second, a desire to add wording respecting site screens, suitable fencing materials and their care and keeping, the equivalency of berms and hedges to fences, and electric fencing. Third, to help more specifically direct which rights-of-way screen walls will be required given requests advanced to the City Council for exceptions to the masonry walls that have been made and granted or denied.

New language in the standards largely pertains to:

1. Defining allowable fence materials;
2. Maintenance of fences;
3. The use of residential privacy screens for specific instances;
4. Electric fencing standards introduction;
5. Berms and hedges serving as functional equivalents to fences;
6. Fencing requirements in instances of perceived, possible impacts and clarification that the City does not enforce private homeowner’s association (HOA) Declaration of Covenants, Conditions, and Restrictions (CCRs) fencing requirements; and,
7. Provisions to handle the abatement of unlawful fences.

Discussion ensued regarding the difficulty in determining and enforcing the specific fencing maintenance standards and amending or removing the electric fencing standards.

Commissioner Everett opened the public hearing at 8:36 p.m.

Bettina Cameron expressed concern about the universality of the standards and the impact on large lots. She thinks there should be exceptions for agricultural uses and the Wildlife Corridor Zone.

Mr. Hobbs clarified that the standards specific to livestock fencing are included in other areas of Municipal Code and wildlife corridor fencing would be subject to the standards specified in the Wildlife Corridor Overlay Zone standards.

Commissioner Everett closed the public hearing at 8:39 p.m.

Commissioner Everett stated that although he is unsure about the wording in the privacy screening section, he is unable to provide improved language. As such, the standards can move forward to the City Council for further evaluation and consideration.

MOTION: *Commissioner Allen moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code Section 17.10.030 and Chapter 17.60 striking Section 17.60.120(K)(4), “Installation requirements. No electric fence shall be installed or used unless it is completely surrounded by a non-electrical fence or wall that is not less than 6’ in height save in the case where the fence serves to contain livestock – in which case the fence may be no higher than 6’,” and renumber the following sections accordingly. Commissioner Strong seconded the motion.*

AMENDED MOTION: *Commissioner Allen moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code Section 17.10.030 and Chapter 17.60 with the following changes:*

- 1. Strike Section 17.60.120(K)(4), “Installation requirements. No electric fence shall be installed or used unless it is completely surrounded by a non-electrical fence or wall that is not less than 6’ in height save in the case where the fence serves to contain livestock – in which case the fence may be no higher than 6’,” and renumber the following sections accordingly; and*
- 2. Add a note to 17.60.120(A) referencing livestock standards that permit wire as acceptable fencing for agricultural uses.*

Commissioner Strong seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a unanimous vote.

6.G. ACTION – Lot Line Adjustments – Ordinance

Mr. Hobbs presented the item. The State's last legislative session included passage of House Bill 406. The bill introduced various edits to State law, including the allowance for a property line adjustment to be executed by survey between a subdivision and an outlying parcel of ground in lieu of platting via a plat amendment process. This code amendment introduces that allowance into Municipal Code in keeping with the State's action.

Commissioner Strong expressed concern about lot line adjustments between properties with different zoning, lot line adjustments being approved by staff, and impacts of lot line adjustment on neighboring property values. He asked if the City could require public notification and comment on some types of lot line adjustments.

Planning Director Brandon Larsen explained that although the State Code requires the land use authority to approve the lot line adjustments, the applicant still needs to receive a notice of lot line approval from the City to be able to record the change with the County.

Discussion ensued clarifying the following:

- The Planning Director is the land use authority for lot line adjustments and applications must meet City standards including currently applicable zoning requirements;
- A lot line adjustment would not alter the underlying zoning and could result in multiple zones on a single property; and
- The City could ask the landowner to apply for a rezone to resolve multiple zoning issues but not condition the lot line adjustment approval on the rezone.

Commissioner Everett opened the public hearing at 9:04 p.m.

Bettina Cameron requested clarification regarding the land use authority for approvals for lot line adjustments and for the standards to clearly reflect which body is approving the applications.

Commissioner Everett closed the public hearing at 9:06 p.m.

Mr. Larsen suggested amending the second sentence in 16.50.040 Approval Process to read, “For lot line adjustments that are approved or approved with conditions, the planning director (or their designee) shall ensure that the notice of lot line adjustment approval, which includes a legal description prepared by a publicly licensed surveyor, is recorded in the office of the County Recorder, as set forth in Title 10, Chapter 9a, Part 6, Municipal Land Use, Development, and Management Act,” to require review by a publicly licensed surveyor (PLS).

Mr. Draper recommended adding the requirement for a legal description prepared by a PLS to EMMC 16.50.030, rather than 16.50.040. However as 16.50.040 was not included in this amendment, the change would need to be noticed and approved during a future meeting or added to the recommendation for the City Council.

MOTION: *Commissioner Everett moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code as follows:*

1. *17.10.030 Definitions as presented;*
2. *16.50 Lot Line Adjustments as presented; and*
3. *Have staff add language in the appropriate section of 16.50.030 regarding requiring a legal description of the lot line change prepared by a publicly licensed surveyor to be presented to the City Council.*

Commissioner Allen seconded the motion.

AMENDED MOTION: *Commissioner Everett moved to recommend approval to the City Council of Eagle Mountain Municipal Code as follows:*

1. *17.10.030 Definitions as presented;*
2. *16.50 Lot Line Adjustments as presented;*
3. *Have staff add language in the appropriate section of 16.50.030 regarding requiring a legal description of the lot line change prepared by a publicly licensed surveyor to be presented to the City Council;*
4. *16.55.040 Approval Process and Exceptions with the changes that are presented in the staff report; and*
5. *Staff may bring section 16.50.030, which was not included in the staff report, to the Planning Commission for additional review if they feel it is necessary.*

Commissioner Allen seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a unanimous vote.

6.H. ACTION – Livestock – Ordinance

Mr. Hobbs presented the item. Conflict between two neighbors over the placement of a chicken coop brought to light the need to slightly modify the presentation of required setbacks for accessory livestock structures to other structures nearby and the need to define the word “structure.” The amendments do not change current policy but rather clarify separations for livestock quartering.

Discussion verified the distance requirements between structures housing livestock and residential units.

Commissioner Everett opened the public hearing at 9:23 p.m. As there were no comments, he closed the hearing.

MOTION: *Commissioner Bergener moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code 17.10 and 17.25.040 as drafted. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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The motion passed with a vote of 4:1.

6.I. ACTION ITEM/PUBLIC HEARING – Landscape Ordinance Amending the Eagle Mountain Municipal Code, Chapter 7 Parks, Trails, and Special Events; Chapter 16 Subdivisions; and Chapter 17 Zoning.

This item was removed from the agenda.

7. Next Scheduled Meeting

The next Planning Commission meeting is scheduled for December 12, 2023.

8. Adjournment

MOTION: *Commissioner Allen moved to adjourn at 9:25 p.m. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 9:25 p.m.

Approved by the Planning Commission on December 12, 2023.

Brandon Larsen

Brandon Larsen

Planning Director

11.28.2023 PC Approved Minutes not signed

Final Audit Report

2023-12-19

Created:	2023-12-13
By:	Shawna Ellis (sellis@emcity.org)
Status:	Signed
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